

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MASOUMEH ZARE FAKHRAN,

Petitioner

VS.

JOHN REID GROHL,

Respondent

) Case Number: FDI-23-798656

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION, FULL CHILD
CUSTODY EVALUATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Masoumeh Zare Fakhrianh (Mother) and Respondent John Grohl (Father). They share one minor child: Zoe Zare Fakhrian Grohl (DOB: 10/16/22).
- 2) On March 10, 2026, Father filed a Request for Order (RFO) seeking a modification of the existing custody and visitation (i.e., parenting time) orders. Father requests:
 - a. A full child custody evaluation, to include a psychological evaluation of both parties;
 - b. Sole legal and sole physical custody pending the evaluation;
 - c. Modification of the existing parenting time orders such that Mother has the minor child on the 1st, 2nd, 4th and 5th Saturdays from 10:00 a.m. – 6:00 p.m., and Wednesdays from 12:30 p.m. – 6:00 p.m., in Sonoma County, with exchanges to occur at the Windsor Police Department.
 - d. A full evidentiary hearing to address the child custody evaluation and for determination of appropriate child custody and visitation orders.

- 1 3) On April 15, 2026, Mother filed a Responsive Declaration to Father's RFO wherein she asks this
2 Court to deny all relief sought by Father. Mother states that all allegations included in Father's
3 RFO were previously litigated. Mother concludes that Father has not made a showing of change
4 in circumstance necessary to modify child custody orders.
- 5 4) On April 15, 2026, Mother filed "Evidentiary Objections to Respondent/Father's Declaration in
6 Support of His Motion filed March 10, 2026," which has been read and considered by the Court.
- 7 5) On April 27, 2026, the matter was heard on the Court's Readiness calendar. The Court referred
8 the parties to Family Court Services (FCS) Mediation on June 5, 2026 and set a return hearing for
9 June 16, 2026.
- 10 6) On June 9, 2026, Mother filed a Supplemental Declaration of Petitioner Masoumeh Zare
11 Fakhrian, which has been read and considered by the Court.
- 12 7) On June 16, 2026, the Court issued the following orders:
 - 13 a. The Court GRANTS Father's request for a full Evidence Code section 730 child custody
14 evaluation, which includes a psychological evaluation of both parties.
 - 15 b. Father shall provide Mother with the names of three proposed 730 evaluators no later
16 than 5:00 p.m., on June 23, 2026. For documentation purposes, Father shall email
17 Mother his list of three potential providers.
 - 18 c. Mother shall then have up and until 5:00 p.m., on June 30, 2026 to select one person from
19 the list sent by Father. Mother shall email Father her selection, for purposes of
20 documentation and compliance with this Court's order.
 - 21 d. Father shall pay all costs associated with the Evidence Code section 730 child custody
22 evaluation, which shall be subject to reallocation. The issue of reallocation is reserved by
23 the Court.
 - 24 e. The Court reserves jurisdiction over any and all other requests contained within Father's
25 RFO through the next hearing.
 - 26 f. A return hearing is set on **September 17, 2026, at 9:00 a.m., in Department 403** to
27 address the status of the 730 evaluation and for consideration of any and all other issues
28 raised in Father's RFO filed on March 10, 2026 (assuming the issues are ripe for
29 consideration at that time).

1 g. All prior orders, not in conflict with the orders entered herein, shall remain in full force
2 and effect.

3 8) As of this Court's review, neither party has filed an update declaration with the Court.

4 **B. Findings and Order**

5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child(ren) is the United States.

9 2) The Court anticipates that the 730 evaluation has not been completed. **The Court will continue**
10 **the matter to December 3, 2026, at 9:00 a.m.,** to address the status of the 730 evaluation and for
11 consideration of any and all other issues raised in Father's RFO filed on March 10, 2026
12 (assuming the issues are ripe for consideration at that time).

13 3) Counsel for Father shall prepare the Findings and Order After Hearing.

14 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).